

25STCV19409 25STCV19409

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-06-25

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Case Number: 25STCV19409 Hearing Date: June 25, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

ARCELIA DIAZ

;

Plaintiff,

vs.

GENERAL MOTORS LLC

, et al.;

Defendants.

Case

No.:

25STCV19409

Hearing

Date:

June
25, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

DEFENDANT GENERAL MOTORS, LLC'S motion FOR
COMPLIANCE PURSUANT TO C.C.P. 871.26;
REQUEST FOR SANCTIONS

MOVING PARTY: Defendant General Motors LLC

RESPONDING PARTY: Plaintiff Arcelia Diaz

Motion for Compliance Pursuant to Code of Civil Procedure section 871.26
and Request for Sanctions

The court
considered the moving, opposition, and reply papers filed in connection with
this motion.

Although the
opposition was untimely filed and served, the court will consider it because Defendant
General Motors, LLC ("Defendant") will not be prejudiced and was able to file a
reply.

REQUEST FOR JUDICIAL NOTICE

The court denies Defendant's request for judicial
notice of Exhibit A attached to the Declaration of Kaitlyn Lasater.

DISCUSSION

Defendant moves for an order (1) for compliance requiring plaintiff
Arcelia Diaz ("Plaintiff") to provide the complete production of documents and

written disclosure of information required under Code of Civil Procedure section 871.26, subdivisions (b) and (f) and (2) imposing monetary sanctions against Plaintiff's attorneys of record, Strategic Legal Practices, APC, in the sum of \$1,500.00.

The court grants the motion for compliance pursuant to Code of Civil Procedure section 871.26 as to the incidental damage information because Plaintiff refuses to provide these documents.

(Code Civ. Proc., § 871.26, subds. (b), (f)(5).) Although Plaintiff asserts that these documents are in Defendant's possession, Code of Civil Procedure section 871.26 does not allow the plaintiff to merely state that these documents are in the defendant's possession. Code of Civil Procedure section 871.26 states that "plaintiff shall provide the following documents" without qualification or exception.

(Code Civ. Proc., § 871.26, subds. (f), (g).)

The court denies the motion for compliance pursuant to Code of Civil Procedure section 871.26 as to the sales contract, repair orders, and insurance information because Plaintiff timely provided the sales contract, "Retail Installment Sale Contract – Simple Finance Charge (with Arbitration Provision)" and multiple repair orders on December 24, 2025, and Plaintiff stated that the disclosure regarding whether the motor vehicle has been involved in a collision or accidents reported to insurance prior to the nonconformity is not applicable and, thus, Plaintiff need not provide insurance information. (Declaration of Deepali Shah, Ex. 1.) (Code Civ. Proc., § 871.26, subds. (f)(1), (4), (g)(7).) Because Defendant filed its responsive pleading, the Demurrer, on October 29, 2025, the deadline to produce the documents was December 29, 2025. (Code Civ. Proc., § 871.26, subd. (b).)

The court grants Defendant's request for monetary sanctions in the amount of \$1,500.00 against Strategic Legal Practices, APC because Plaintiff has not shown good cause for not producing documents regarding incidental damages. (Code. Civ. Proc., § 871.26, subd. (j)(1).)

ORDER

The court grants defendant General Motors LLC's motion for compliance and sanctions as follows.

Pursuant to Code of Civil Procedure section 871.26, subdivisions (b) and (f)(5), the court orders plaintiff Arcelia Diaz to produce documents detailing all underlying claimed incidental damages.

The court orders Strategic Legal Practices, APC to pay monetary sanctions to defendant General Motors LLC in the amount of \$1,500 within 15 business days of the date of service of this order.

The court orders defendant General Motors LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: June 25, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court